

24VECV06338 24VECV06338

County: los-angeles

Division: Civil Law and Motion

Department: NWI

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Case Number: 24VECV06338 Hearing Date: July 21, 2026 Dept: NWI

24VECV06338 RAUL ALBERTO

MAZARIEGOS ROBLES, et al. vs VOLKSWAGEN GROUP OF AMERICA, INC.,
A NEW JERSEY CORPORATION

July 21, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Ruling – Motion to Compel

Plaintiff Beatriz Mazariegos Herz's Deposition

I.

Background

On December 18, 2024, Plaintiffs Raul Alberto Mazariegos Robles ("Robles") and Beatriz Mazariegos Herz ("Herz") (collectively "Plaintiffs") filed this action against Defendants Volkswagen Group of America, Inc. ("Defendant") and Does 1 to 10 alleging three causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; and (3) violation of the Song-Beverly Act Section 1793.2.

On June 11, 2026, Defendant filed the instant motion to compel the deposition of Herz.

On July 8, 2026, Plaintiffs filed an opposition.

On July 14, 2026, Defendant filed a reply.

II. Discussion

Code of Civil Procedure section 2025.450 provides in pertinent part that a motion to compel deposition “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2025.450, subd. (b)(2).) Section 2016.040 states a meet and confer declaration “shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

The parties met and conferred regarding the instant motion to compel deposition over email. (Konrad Decl., ¶¶ 3, 6, 7; Exhs. A, D.) However, section 2016.040 requires parties to meet and confer in person, by telephone, or by videoconference. (CCP § 2016.040(a), emphasis added.) Accordingly, email correspondences do not satisfy the statutory meet and confer requirements.

The Court uses its discretion to continue the hearing on the instant motion to compel deposition to August 28, 2026 at 8:30 a.m. and orders opposing parties to meet and confer, either in person, by telephone, or by video conferencing, and to file a joint declaration at least five (5) court days prior to the continued hearing advising the Court of the meet and confer efforts including which issues were resolved, if any, and what issues remain. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355-356 [holding that trial courts are not required to ignore defects in the statutory meet and confer process and retains discretion to order counsel to meaningfully discuss the pleadings].) If no joint declaration is filed 5 court days in advance of the continued hearing, the Court will assume all discovery issues have been resolved and take the motion off calendar sua sponte

Moving party to give notice.